



OFFICE OF THE POLICE COMMISSIONER

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January 25, 2011

Memorandum for:

Deputy Commissioner, Trials

Re:

**Police Officer Rosetta Rosendary-Phillips**

Tax Registry No. 900614

Fleet Services Division

Disciplinary Case Nos. 83520/07 & 85159/09

The above named member of the service appeared before Assistant Deputy Commissioner Robert W. Vinal on April 15, 2010, and was charged with the following:

**DISCIPLINARY CASE NO. 83520/07**

1. Said Police Officer Rosetta Rosendary-Phillips, assigned to the 23<sup>rd</sup> Precinct, while on-duty, on or about December 19, 2006, in New York County, did misuse Department computer systems, in that said Officer did make an inquiry unrelated to official Department business, by running a DMV license check of a person known to this Department and/or in that said Officer did fail to safeguard her confidential computer password, by providing the password to other members of the service and/or by logging into computer databases and allowing other MOS's to access them by utilizing her password.

**P.G. 219-14, Page 1, Paragraphs 2 & 4**

**DEPARTMENT COMPUTER  
SYSTEMS**

2. Said Police Officer Rosetta Rosendary Phillips, assigned to the 23<sup>rd</sup> Precinct, while off-duty, on or about October 26, 2006, in [REDACTED], did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, in that said Officer did fail to safeguard Department property, including a pack of parking summonses, ammunition, collar brass and a Department Manual, specifically a Scooter Tactical Training Guide, by leaving said items in her personal vehicle, which vehicle was seized during her husband's arrest.

**P.G. 203-10, Page 1, Paragraph 5**

**GENERAL REGULATIONS**

3. Said Police Officer Rosetta Rosendary-Phillips, assigned to the 23<sup>rd</sup> Precinct, on or about October 3, 2007, said Officer having changed said Officer's residence, did fail and neglect to timely notify her Commanding Officer of her change of address, by not timely submitting form Change of Name, Residence or Social Condition (PD 451-021), as required.

**P.G. 203-18, Page 1, Paragraph 3**

**RESIDENCE REQUIREMENTS**



**PO ROSETTA ROSENDARY-PHILLIPS**

**DISCIPLINARY CASE NO. 85159/09**

1. Said Police Officer Rosetta Rosendary-Phillips, assigned to the 23<sup>rd</sup> Precinct, while on-duty, on or about June 26, 2008, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, in that said police officer did wrongfully change her assignment, without permission or authority to do so.

**P.G. 203-10, Page 1, Paragraph 2**

**GENERAL REGULATIONS**

2. Said Police Officer Rosetta Rosendary-Phillips, assigned to the 23<sup>rd</sup> Precinct, while on-duty, on or about June 27, 2008, was absent without leave, in that said police officer, having reported to the Medical Division at 0705 hours, did thereafter at approximately 0715 hours leave the Medical Division without authority, and did not report to duty until 1330 hours.

**P.G. 203-05, Page 1, Paragraph 2**

**PERFORMANCE ON DUTY**

**P.G. 203-10, Page 1, Paragraph 5**

**GENERAL REGULATIONS**

3. Said Police Officer Rosetta Rosendary-Phillips, assigned to the 23<sup>rd</sup> Precinct, while on-duty, on or about June 27, 2008, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, in that said police officer did wrongfully fail to sign in or out of the log at the District Surgeon's Office, as required.

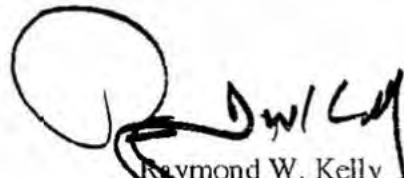
**P.G. 203-10, Page 1, Paragraph 5**

**GENERAL REGULATIONS**

In a Memorandum dated July 29, 2010, Assistant Deputy Commissioner Vinal accepted the Respondent pleading guilty to all Specifications in Disciplinary Case Nos. 83520/07 and 85159/09. Having read the Memorandum and analyzed the facts of these matters, I approve the findings, but disapprove the recommendation that the Respondent forfeit 35 Vacation days.

The overall nature of the total misconduct committed by the Respondent is highly prejudicial to the good order, efficiency or discipline of the Department. Such connotes a seeming inability to respect certain core principles of the Department, such as compliance with procedure and being accountable for her actions and whereabouts.

Therefore, in addition to the forfeiture of 35 Vacation days, Respondent Rosendary-Phillips is to be DISMISSED from the New York City Police Department; however, this penalty of dismissal will be held in abeyance pursuant to Section 14-115 (d) of the NYC Administrative Code for a period of one year, during which time the Respondent will remain on the force at the Police Commissioner's discretion and may be terminated at any time without a further hearing.



Raymond W. Kelly  
Police Commissioner





POLICE DEPARTMENT

July 29, 2010

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Rosetta Rosendary-Phillips  
Tax Registry No. 900614  
Fleet Services Division  
Disciplinary Case Nos. 83520/07 & 85159/09  
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The above-named member of the Department appeared before me on April 15, 2010, charged with the following:

Disciplinary Case No. 83520/07

1. Said Police Officer Rosetta Rosendary-Phillips, assigned to the 23rd Precinct, while on-duty, on or about December 19, 2006, in New York County, did misuse Department computer systems, in that said Officer did make an inquiry unrelated to official Department business, by running a DMV license check of a person known to this Department and/or in that said Officer did fail to safeguard her confidential computer password, by providing the password to other members of the service and/or by logging into computer databases and allowing other MOS's to access them by utilizing her password.

P.G. 219-14, Page 1, Paragraphs 2 & 4 DEPARTMENT COMPUTER SYSTEMS

2. Said Police Officer Rosetta Rosendary-Phillips, assigned to the 23rd Precinct, while off-duty, on or about October 26, 2006, in [REDACTED], did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, in that said Officer did fail to safeguard Department property, including a pack of parking summonses, ammunition, collar brass and a Department Manual, specifically a Scooter Tactical Training Guide, by leaving said items in her personal vehicle, which vehicle was seized during her husband's arrest.

P.G. 203-10 Page 1, Paragraph 5 -- GENERAL REGULATIONS

3. Said Police Officer Rosetta Rosendary-Phillips, assigned to the 23rd Precinct, on or about October 3, 2007, said Officer having changed said Officer's residence, did

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fail and neglect to timely notify her Commanding Officer of her change of address, by not timely submitting form Change of Name, Residence or Social Condition (PD 451-021), as required.

P.G. 203-18, Page 1, Paragraph 3 RESIDENCE REQUIREMENTS

Disciplinary Case No. 85159/09

1. Said Police Officer Rosetta Rosendary-Phillips, assigned to the 23rd Precinct, while on-duty, on or about June 26, 2008, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, in that said police officer did wrongfully change her assignment, without permission or authority to do so.

P.G. 203-10, Page 1, Paragraph 5 GENERAL REGULATIONS

2. Said Police Officer Rosetta Rosendary-Phillips, assigned to the 23rd Precinct, while on-duty, on or about June 27, 2008, was absent without leave, in that said police officer, having reported to the Medical Division at 0705 hours, did thereafter at approximately at 0715 hours leave the Medical Division without authority, and did not report to duty until 1330 hours.

P.G. 203-05, Page 1, Paragraph 2 PERFORMANCE ON DUTY

P.G. 203-10, Page 1, Paragraph 5 GENERAL REGULATIONS

3. Said Police Officer Rosetta Rosendary-Phillips, assigned to the 23rd Precinct, while on-duty, on or about June 27, 2008, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, in that said police officer did wrongfully fail to sign in or out of the log at the District Surgeon's Office, as required.

P.G. 203-10, Page 1, Paragraph 5 GENERAL REGULATIONS

The Department was represented by Javier Seymore, Esq., Department Advocate's Office, and the Respondent was represented Michael Martinez, Esq.

The Respondent, through her counsel, entered pleas of Guilty to all of the subject charges. A stenographic transcript of the mitigation hearing record has been prepared and is available for the Police Commissioner's review.



DECISION

The Respondent, having pleaded guilty, is found Guilty as charged.

SUMMARY OF EVIDENCE PRESENTED IN MITIGATION

With regard to Disciplinary Case No. 83520/07, the Respondent testified that she has been married to [REDACTED] for nearly eight years. On October 26, 2006, [REDACTED] was arrested by officers from the [REDACTED] Police Department ([REDACTED] PD). At the time of his arrest, he was driving the Respondent's Dodge Durango truck. The [REDACTED] PD arresting officer did not voucher the truck or seize the truck as evidence. Rather, the truck was towed from the arrest scene by a towing company. A [REDACTED] PD officer told the Respondent that she could retrieve her truck from the towing company if she paid the towing charge. The Respondent went to the towing company, paid the \$185.00 towing charge and retrieved her truck.

When the Respondent realized that her Department parking plaque, which had been inside the truck, was missing, she called the [REDACTED] PD and learned that they had removed the parking plaque from her truck and had also removed other items of Department property: an unused packet of parking summonses, three rounds of ammunition, collar brass, and a Department scooter training manual. The unused packet of parking summonses was still sealed in plastic because she had never opened the packet.

The Respondent testified that she had inadvertently left these items inside her truck because she regularly used this truck to commute to and from work. She explained that the unused packet of summons was inside her personal vehicle because she was never able to pick up a summons book at the start of her tour because, at that time, her

tour started at 0600 hours and the highway safety office, where new summons books were stored and issued, did not open until 0700 hours. As a result, she would pick up a summons book at the end of her tour, 1435 hours, just before she left her command to go home. One night, she took a packet of summons with her when she left to go home because picking up the packet at the highway safety office was the last thing she did before she left her command. The Respondent testified that this was the only time that she did this even though she was going through packets of summonses rapidly because she was writing over 1,000 summonses every month.

The Respondent testified that the three rounds of ammunition found in her truck had fallen out a pouch that she carried her ammunition in whenever she reported to the shooting range. This pouch had fallen over when she was driving and rounds had fallen out of the pouch onto the floor of the truck. She thought she had gathered all the rounds that had fallen out. She stored the pouch and her firearm inside her locker at her command. She later found three rounds she had missed. She placed these three rounds inside the truck's armrest with the intention of putting them back in her locker. They were still inside the armrest when her husband was arrested.

The collar brass was inside the truck because she had removed her collar brass from her uniform shirt when she dropped her shirt off at the cleaners. The Department scooter manual was inside her truck because just before her husband was arrested, she had driven her truck to Floyd Bennett Field to attend mandated scooter requalification training. This 15-page booklet dealt with how to safely operate a two-wheel scooter.

The Respondent recalled that in early October, 2007, she resided in [REDACTED] where she had been living for two to three years. When she had moved there, she had



amended her "ten card" at her command to reflect her new address and no one at her command had ever told her that they had tried to get in touch with her and that they had been unable to do so. However, she had not submitted a Change of Name, Residence or Social Condition form.

The Respondent testified that in December, 2006, she, and every other police officer at her command, had been assigned a Department-issued personal computer password code to use when she needed to access Department computer systems for official Department business. The Respondent's code allowed her access, but some of the codes assigned to other officers at her command sometimes "didn't work." As a result, when a co-worker was unable to access a database using their own code, the Respondent would be asked to log on, or stay logged on, so that the co-worker could access information for official Department business purposes. Such inquiries would appear under the Respondent's code.

The Respondent also acknowledged that during December, 2006, when she would log on using her personal code, she would sometimes run her name or her husband's name to insure "that the computer was up and running."

The Respondent testified that at her official Department interview, she was told for the first time that she should never allow any other police officer to access a Department computer database using her code and that she should never run her own name, or her husband's name, or any name that does not involve an inquiry specifically related to official Department business.

With regard to Disciplinary Case No. 85159/09, the Respondent testified that after her husband's arrest on October 26, 2006, she was placed on modified assignment. In

April, 2008, she suffered an off-duty knee injury when the ceiling inside her house collapsed on her. To rehabilitate her knee, she attended therapy sessions on her own time three days a week for ten months. She was placed on limited duty status. She began performing limited duties at her command in civilian clothing because the locker room at her command was upstairs, because she had been told by her personal physician not to climb stairs, and because the district surgeon had told her to follow her doctor's orders.

On June 25, 2008, a lieutenant at her command told her that she could no longer perform her work in civilian clothing unless she obtained a permission note from the district surgeon. When he told her, "Rose, you need to handle your business," she assumed he meant that she should report directly to the district surgeon the next day, June 26, 2008. She informed the Police Administrative Aide who handled roll call that the lieutenant had authorized her to report directly to the district surgeon the next day. The Respondent acknowledged that the lieutenant had not authorized her to change her tour of duty.

On June 26, 2008, when she arrived at the district surgeon's office at 0705 hours, she was told that the district surgeon would not be coming in until 1000 hours. Although she thought she had signed in, she had not. Because she was suffering pain, she returned home to take her medication. She called her command and requested to be allowed to take the day off because she was in pain. After several telephone conversations with the desk officer and a lieutenant at her command, she was told to report for duty. She immediately left her residence in [REDACTED]. When she arrived at the 23 Precinct, she changed into her uniform in the first floor bathroom. She now wears her uniform every day. She acknowledged that, in retrospect, she should not have left the district surgeon's



office and returned home to take her medication without first calling her command to request the day off. She had assumed that her request would be approved. She was transferred against her will from the 23 Precinct to Fleet Services.

On cross-examination, she asserted that when she was assigned her computer password code, she was never told that she could not allow a fellow officer to use her code and that it was a normal practice at the 23 Precinct for officers to use each other's codes. She was told that on December 19, 2006, someone had run her husband's name using her assigned password code. She believed that someone else had done this because the person who made the computer inquiry had entered the wrong birth date and she knows her husband's correct birth date. No one ever told her that she could not place summonses in her personal vehicle or that she could only store her summons books inside her locker at her command. She acknowledged that it was possible that the three rounds of ammunition that she had missed picking up could have been inside her car for as long as three months because they had fallen underneath the car seat. She acknowledged that it would have been possible to avoid having collar brass inside her truck if she had removed her collar brass from her soiled uniform shirt at her command but that, at the time she was unable to use the locker room. She asserted that since she attended scooter requalification training during 2006 and her husband was arrested on October 26, 2006, the Department scooter manual was only inside her truck for at most a matter of months. She was never told that the scooter manual had to be safeguarded in her locker. None of the three other officers on modified duty at the 23 Precinct wore a uniform.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 N.Y. 2d 222 (1974).

The Respondent was appointed to the Department on January 13, 1992. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Advocate recommended that the Respondent forfeit 35 vacation days and serve one year on dismissal probation as a penalty.

With regard to the recommendation that the Respondent forfeit 35 vacation days, I would note that, based on the penalties imposed in previous disciplinary cases involving pleas of guilty to similar misconduct, the loss of 35 vacation days appears to be an appropriate penalty to cover all of the misconduct the Respondent has pleaded guilty to committing under these two cases.

Under Disciplinary Case No. 83520/07, the Respondent has pleaded Guilty to misusing the Department computer systems, in that she ran DMV license checks on her husband and she failed to safeguard her confidential computer password by providing the password to other members of the service and by logging into computer databases and allowing another MOS to access them by utilizing her password. In Case No. 84602/08 (signed Dec. 31, 2009), a nine-year member, who had no prior disciplinary adjudications, forfeited 15 vacation days for making an inquiry in the Department's computer system that was unrelated to the official business of the Department.

Also, the Respondent here has pleaded guilty to failing to safeguard Department property, including a packet of parking summonses, three rounds of ammunition, collar brass and a Department scooter guide, by leaving these items in her personal vehicle.



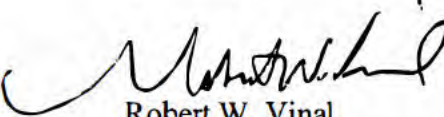
However, the record is devoid of any evidence that this misconduct resulted in any adverse impact to the Department. The Respondent also admitted that she failed to timely submit a Change of Name, Residence or Social Condition form, although she did change her "ten card" to reflect her change of residence.

Under Disciplinary Case No. 85159/09, the Respondent has pleaded Guilty to: wrongfully changing her assignment without permission or authority to do so; being AWOL from her assignment in that she left the District Surgeon's Office at 0715 hours without permission, and did not report to duty until 1330 hours; and failing to sign in or out of the log at the District Surgeon's Office. In Case No. 82992/07 (signed January 12, 2009), a seven-year member with no prior disciplinary record forfeited 13 vacation days for being absent without leave for one tour of duty.

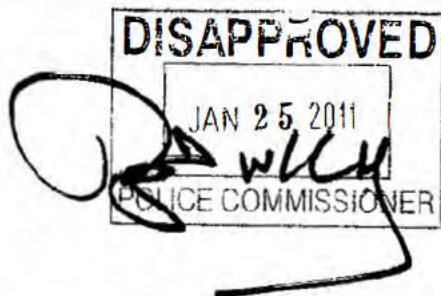
With regard to the Advocate's recommendation that the Respondent be required to serve one year on dismissal probation, based on the Respondent's lack of a prior disciplinary record in over 18 years of service, a period on dismissal probation does not appear to be warranted.

Therefore, it is recommended that the Respondent forfeit 35 vacation days.

Respectfully submitted,



Robert W. Vinal  
Assistant Deputy Commissioner - Trials



POLICE DEPARTMENT  
CITY OF NEW YORK

From: Assistant Deputy Commissioner - Trials  
To: Police Commissioner  
Subject: CONFIDENTIAL MEMORANDUM  
POLICE OFFICER ROSETTA ROSENDARY-PHILLIPS  
TAX REGISTRY NO. 900614  
DISCIPLINARY CASE NOS. 83520/07 & 85159/09

The Respondent received an overall rating of 3.5 on her 2009 performance evaluation, 3.5 on her 2008 evaluation, and 3.0 on her 2007 evaluation. She has no medals. [REDACTED]

[REDACTED] She has no prior disciplinary record.

On January 16, 2008, she was placed in Level I Discipline Monitoring which ended on May 6, 2009 when she was placed in Level II Discipline Monitoring based on her overall record.

For your consideration.



Robert W. Vinal  
Assistant Deputy Commissioner Trials